

**PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR APRIL 30, 2026, AT 8:30 A.M.**

These are the tentative rulings for the **THURSDAY, APRIL 30, 2026, at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., WEDNESDAY, APRIL 29, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR CIVIL LAW AND MOTION MATTERS. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **THE HONORABLE MICHAEL W. JONES**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 3** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. JCCP5336 TOPGOLF PAYROLL WAGE AND HOUR CASES

If oral argument is requested, it shall be heard on **May 7, 2026, at 8:30 a.m. in Department 3**.

Case Management Conference

The case management conference is continued to **Thursday, July 2, 2026, at 8:30 a.m. in Department 3**. The parties shall file a joint case management conference statement seven days before the hearing.

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2. M-CV-0085478 LININGER, THOMAS v. MALEK, MANASA

If oral argument is requested, it shall be heard on **May 7, 2026, at 8:30 a.m. in Department 3.**

Cross-Defendant Manassa Malek's Motion to Determine Reasonable Medical Charges and Release Interpleaded Funds

All moving papers must be served at least 16 court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) This timeline is extended depending upon the method of service. (*See generally id.*) There is no proof of service in the file demonstrating cross-complainant Nadine Yassa has been served with the motion. Accordingly, cross-defendant's motion is denied without prejudice.

The court also observes there are no case management conference or trial date set. The court on its own motion sets a case management conference for July 27, 2026, at 3:00 p.m. in Department 40. The court directs the clerk of court to provide notice to cross-complainant Nadine Yassa and cross-defendant Manassa Malek of the case management conference.

3. M-CV-0094796 CAPITAL ONE, N.A. v. JORDAN, MICHAEL

If oral argument is requested, it shall be heard on **May 7, 2026, at 8:30 a.m. in Department 3.**

Defendant's Motion to Compel Arbitration and Stay Proceedings

Defendant moves to compel arbitration of plaintiff's complaint.

A request to compel arbitration under the FAA may be brought in state court. (*Southland Corp. v. Keating* (1984) 465 U.S. 1, 16; *Main v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1977) 67 Cal.App.3d 19, 24, disapproved of on other grounds in *Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394.) The arbitration statutes evidence a strong public policy in favor of arbitration that is frequently approved and enforced by the courts. (*Madden v. Kaiser Foundation Hospitals* (1976) 17 Cal.3d 699, 706; *Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1405.) The FAA governs a contractual arbitration where there is a written contract involving interstate or foreign commerce or maritime transactions. (9 U.S.C. §§1, 2.) Where the parties incorporate the FAA into the agreement, the

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FAA governs a party's request to compel arbitration. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 346.)

A threshold question for any motion to compel arbitration is whether an agreement to arbitrate exists between the parties. (*Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396.) Defendant carries this initial burden of proving, by a preponderance of the evidence, the existence of a valid arbitration agreement. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) A party opposing a motion to compel arbitration then "bears the burden of proving by a preponderance of the evidence any fact necessary to its defense" including evidence challenging the acceptance of the agreement. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842; *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) If the opposing party meets its burden of production, then the moving party must establish with admissible evidence a valid arbitration agreement. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165–66.) "[A] party cannot be required to submit to arbitration any dispute which he has not agreed so to submit." (*AT&T Technologies v. Communications Workers* (1986) 475 U.S. 643, 648; see *Cronus Investments, Inc. v. Concierge Svcs.* (2005) 35 Cal.4th 376, 384–85.)

Defendant meets its initial burden that an agreement to arbitrate exists between plaintiff and defendant that involves interstate commerce. As such, the burden shifts to plaintiff.

Plaintiff does not oppose the motion to compel arbitration and thus does not meet its burden to establish any defenses.

Based on the foregoing, defendant made a sufficient showing of a valid and enforceable agreement to arbitrate between the parties and no defense to enforcement applies. Accordingly, defendant's motion to compel arbitration is granted. The action shall be stayed pending completion of the arbitration. The court schedules this matter for an Order to Show Cause re status of arbitration on **Monday, October 19, 2026, at 3:30 p.m. in Department 40.**

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4. M-CV-0096584 PALANIAPPAN, RAMU v. JOHN, GARY

If oral argument is requested, it shall be heard on **May 7, 2026, at 8:30 a.m. in Department 3.**

Defendant's Demurrer to Complaint for Unlawful Detainer

Defendant demurs to plaintiff's verified complaint on the grounds the court lacks subject matter jurisdiction, the complaint is uncertain, and does not allege facts sufficient to state an unlawful detainer cause of action. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, "[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits." (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.) A pleading is "uncertain" if it is ambiguous and unintelligible. (Code Civ. Proc. § 430.10, subd. (f).)

An unlawful detainer based on the failure to pay rent has several elements: (1) plaintiff owns the property; (2) plaintiff rented the property to defendant; (3) pursuant to a lease/rental agreement, defendant was required to pay rent in a specified amount to plaintiff; (4) plaintiff properly gave defendant three days written notice to pay rent or quit; (5) when the three day notice was provided, the amount stated therein was due; (6) defendant did not pay the amount stated in the three day notice within three days after service of the notice; and (7) defendant is still occupying the property. (Code Civ. Proc. § 1161, subd. (2).)

Here, when taking the factual allegations in the complaint as true, plaintiff does not allege facts sufficient to state an unlawful detainer cause of action because the complaint contends the parties entered into a written lease agreement on September 15, 2026, which is a future date that has yet to occur. Therefore, the complaint does not sufficiently allege a lease/rental agreement between the parties.

Accordingly, defendant's demurrer is sustained with leave to amend. Plaintiff shall file and serve an amended complaint on or before 5 calendar days after service of the order after hearing. (Cal. Rules of Court, rule 3.1320, subd. (g).)

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5. S-CV-0048414 MOORE, CHARLES v. SASENBACH, ELIZABETH

If oral argument is requested, it shall be heard on **May 7, 2026, at 8:30 a.m. in Department 3.**

Plaintiff's Motion to Serve Defendant Richard Paul Gallagher Jr. and Defendant Gregory C. Sassenbach by Publication

Plaintiff moves for the court to authorize service on defendants Richard Paul Gallagher Jr. and Gregory C. Sassenbach by publication pursuant to Code of Civil Procedure section 415.50. However, plaintiff does not present sufficient evidence that these defendants cannot be served in another manner specified in the article—specifically, by mailing and acknowledgement pursuant to Code of Civil Procedure section 415.30. Accordingly, plaintiff's motion is denied without prejudice.

6. S-CV-0049276 BARBOUR, MYKEL v. CREEKSIDE TOWN CENTER

Defendant CPT Creekside Town Center, LLC's and Vestar Properties, Inc.'s Motion for Order Allowing Filing of Amended Cross-Complaint

Defendants/cross-complainants CPT Creekside Town Center, LLC and Vestar Properties, Inc.'s motion for order allowing filing of amended cross-complaint is granted. (Code Civ. Proc., §§ 473, subd. (a)(1), 576.) Defendants/cross-complainants shall file and serve the first amended cross-complaint attached to the declaration of Edward Gordon on or before **May 7, 2026.**

Defendant Professional Security Consultant Motion for Leave to File Cross-Complaint

Defendant's motion for leave to file cross-complaint is continued to **May 14, 2026, at 8:30 a.m. in Department 3.** Defendant shall file a supplemental declaration on or before **May 7, 2026**, that attaches as an exhibit the proposed cross-complaint for the court's review.

Defendant Barnes & Noble Booksellers, Inc.'s Motion for Summary Judgment

Plaintiff's request to continue the motion for summary judgment pursuant to Code of Civil Procedure section 437c, subdivision (h) is granted in light of the outstanding discovery.

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The parties are ordered to meet and confer in good faith prior to the hearing, which includes acting within the spirit and meaning of the California Attorney Guidelines of Civility and Professionalism, to select a mutually agreed upon date for the motion for summary judgment.

Appearances of the parties are required at the hearing.

7. S-CV-0051015 COOPER, AMANDA v. NEW PRIME

The mediation status conference is dropped from calendar in light of the parties' joint mediation status conference statement filed with the court on April 24, 2026.

8. S-CV-0051302 HAPAI, DEANNA v. PLACER COUNTY ANIMAL SVS.

If oral argument is requested, it shall be heard on **May 14, 2026, at 8:30 a.m. in Department 3.**

Plaintiffs' Motion for Leave to File First Amended Complaint

Plaintiffs motion for leave to file a first amended complaint is granted. (Code Civ. Proc., §§ 473, subd. (a)(1), 576.) Plaintiffs shall file and serve the first amended complaint attached to the declaration of Brett E. Rosenthal on or before **May 7, 2026.**

If oral argument is requested with respect to continuing the trial and related dates or the motion for summary judgment/adjudication hearing date, the parties are ordered to meet and confer in good faith prior to the hearing, which includes acting within the spirit and meaning of the California Attorney Guidelines of Civility and Professionalism, to select mutually agreed upon dates.

9. S-CV-0052886 FOXX, SPENCER v. JEW, BRIAN

The motion to compel independent neuropsychological examination of plaintiff is dropped from calendar at the request of the parties in light of the same motion being scheduled to be heard on June 12, 2026.

The case management conference is dropped from calendar in light of the court granting the parties' stipulation to continue trial.

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10. S-CV-0053416 SCHAFFER, JACOB v. GREEN, RANDOLPH

If oral argument is requested, it shall be heard on **May 14, 2026, at 8:30 a.m. in Department 3.**

Defendants' Motion for Leave to File and Serve Cross-Complaint

Defendants seek leave of court to file a cross-complaint.

A defendant who fails to file a cross-complaint at the time of filing the answer must seek leave from the court to file the cross-complaint. (Code Civ. Proc., §§ 426.50, 428.50, subd. (a).) Leave to file a compulsory cross-complaint is generally granted unless the defendant has not acted in good faith or there is substantial prejudice to the plaintiff if leave is granted. (*Silver Organization Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98–100; *Foot's Transfer & Storage Co. v. Superior Court* (1980) 114 Cal.App.3d 897, 902–03.)

The proposed cross-complaint alleges causes of action for (1) Quiet Title based on Adverse Possession; (2) Quiet Title based on the Agreed Boundary Doctrine; (3) Breach of Oral Contract; (4) Promissory Estoppel; (5) Trespass; (6) Private Nuisance; and (7) Declaratory Relief, all of which arise from the same transactions as plaintiffs' complaint. The court finds no evidence defendants acted in bad faith. The court further finds there is no risk of substantial prejudice to any party if leave is granted.

Accordingly, defendants' motion for leave to file a cross-complaint is granted. Defendants shall file and serve the cross-complaint on or before **May 7, 2026.**

If oral argument is requested with respect to continuing the trial and related dates, the parties are ordered to meet and confer in good faith prior to the hearing, which includes acting within the spirit and meaning of the California Attorney Guidelines of Civility and Professionalism, to select mutually agreed upon trial dates.

11. S-CV-0055110 TAYLOR, ALEXANDRIA v. K-LOVE

At the direction of the Presiding Judge, the demurrer and motion to stay are continued to be heard by the **Honorable Trisha J. Hirashima on June 30, 2026 at 8:30 a.m. in Department 42.**

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12. S-CV-0055842 GRAND, NATALIE v. HOSSEINI, NIMA

If oral argument is requested, it shall be heard on **May 14, 2026, at 8:30 a.m. in Department 3.**

Petition for Approval of Minor's Compromise Claim

The petition for approval of minor's compromise claim is denied without prejudice because the petition is deficient in several areas.

First, the petition alleges costs incurred for filings in the Sacramento Superior Court without any explanation as to their necessity considering this action is filed in the Placer County Superior Court.

Second, petition alleges costs incurred for guardian ad litem filings but a review of the court record reveals plaintiffs have not filed any guardian ad litem applications.

Third, petitioner requests attorney's fees in the amount of 40% of the minor's gross recovery. Absent extraordinary and compelling circumstances, the court finds that reasonable attorney fees for representation of a minor are no more than one-fourth of minor's gross recovery.

Fourth, the petition alleges minor Maximilian Grand suffered injuries but does not attach any medical or dental records.

Fifth, the petition requests the settlement funds to be placed in a financial institution in this state yet does not provide information about which financial institution the funds will be placed.

Finally, the court notes there is no operative summons in this action as the court recalled the summons on December 3, 2025. An OSC re: Summons is set for **Monday, July 27, 2026, at 3:30 in Department 40.**

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13. S-CV-0055904 AGOSTINI, CAROLYN v. AGOSTINI, SEBASTIEN

If oral argument is requested, it shall be heard on **May 14, 2026, at 8:30 a.m. in Department 3.**

Plaintiff's Motion for Summary Adjudication of Plaintiff's Second Cause of Action for Partition by Sale

Preliminary Matters

Plaintiff's requests for judicial notice are granted.

Ruling on Motion

Plaintiff moves for summary adjudication as to the second cause of action for partition by sale in her complaint. A motion for summary adjudication may be granted if "all the papers submitted show that there is no triable issue as to any material fact and the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc. § 437c, subd. (c).) Plaintiff, as the moving party, meets her burden if she proves each element of the cause of action. (*Id.* subd. (p)(1).) Only when this initial burden is met does the burden shift to the opposing party to show a triable issue of material fact exists as to the cause of action. (*Ibid.*) In reviewing a motion for summary adjudication, the court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.)

Partition is a statutorily prescribed proceeding in equity that confers broad discretion on the trial court to fashion relief without being bound by strict rules of procedure. (*Richmond v. Dofflemyer* (1980) 105 Cal.App.3d 745, 766; *Wallace v. Daly* (1990) 220 Cal.App.3d 1028, 1035.) In a partition action, any co-owner of real or personal property may seek to terminate and sever common interests in property "to avoid the inconvenience and dissension arising from sharing joint possession of land.' . . . [Citation.]" (*LEG Investments v. Boxler* (2010) 183 Cal.App.4th 484, 493, citation omitted.) A co-tenant who holds an interest in real property has an absolute right to bring a partition action at any time, absent waiver or estoppel. (Code Civ. Proc., §§ 872.210, 8972.710, subd. (b).) "If the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property and, unless it is to be later determined, the manner of partition." (Code Civ. Proc., § 872.720, subd. (a).)

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By the plain statutory language, the court must first determine the interests of the parties in the subject property before it can determine the manner of partition.

Here, plaintiff meets her burden to establish the parties have concurrent 50% interests in the property and that she did not waive her right to partition. (UMF Issue 1, Nos. 1–3, Issue 2, Nos. 1–4.) The burden therefore shifts to defendants to raise a triable issue of material fact. However, defendants do not meet their burden to raise a triable issue of material fact.

Accordingly, the motion for summary adjudication is granted. The parties have an undivided interest in the property as tenants in common with plaintiff having a 50% interest and defendants having a 50% interest.

As to the manner of partition, it appears to be uncontested that the real property is a single-family dwelling. (UMF Issue 3, Nos. 1–2.) Accordingly, the court finds partition by sale would be more equitable. (Code Civ. Proc., § 872.820.)

The court is required to appoint a referee to sell the property. (Code Civ. Proc., § 873.010, subd. (a).)

The court on its own motion schedules a hearing to appoint a referee on **May 28, 2026 at 8:30 a.m. in Department 3**. The parties are directed to meet and confer in good faith, which includes acting within the spirit and meaning of the California Attorney Guidelines of Civility and Professionalism, towards proposing a mutually agreeable referee. On or before **May 21, 2026**, the parties shall file a joint declaration updating the court on the meet and confer efforts and providing the name of a mutually agreeable referee or, if they are unable to agree, each party may submit a list of up to three proposed referees with information pertaining to their training and experience.

14. S-CV-0056028 JANSEN, DANIEL v. J.B. HUNT TRANSPORT SERVICES

The demurrer is continued to **Thursday, May 7, 2026, at 8:30 a.m. in Department 3**.

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15. S-CV-0056838 SKORODUMOVA, DARIIA v. NYACK

If oral argument is requested, it shall be heard on **May 14, 2026, at 8:30 a.m. in Department 3.**

Plaintiff Dariia Skorodumova's Motion for Reconsideration of January 7, 2026, Order

Preliminary Matters

The court notes plaintiff's memorandum exceeds the 15 page limit imposed by California Rules of Court, rule 3.1113, subdivision (d) and does not include a table of contents as required by California Rules of Court, rule 3.1113, subdivision (f). The court admonishes plaintiff to adhere to the applicable California Rules of Court in subsequent pleadings.

Ruling on Motion

A motion for reconsideration must be made "within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law. . ." (Code Civ. Proc., § 1008, subd. (a).) Moreover, the motion must include an affidavit that details "what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (*Ibid.*) The motion must also present a satisfactory explanation as to why the evidence was not presented at an earlier time. (Code Civ. Proc., § 1008; *Shiffer v. CBS Corp.* (2015) 240 Cal.App.4th 246, 255.) The moving party bears the burden of showing that the information supporting reconsideration is such that the moving party could not, with reasonable diligence, have discovered or produced it earlier. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212–13.)

Plaintiff's motion is procedurally and substantively deficient.

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First, plaintiff has not included an affidavit with their motion that details “what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (Code Civ. Proc., § 1008, subd. (a).)

Second, plaintiff has not presented any new or different facts, circumstances, or law that warrants reconsideration of the court’s order.

Accordingly, plaintiff’s motion is denied.

16. S-CV-0056872 DOWLING, TERESA v. DMV

If oral argument is requested, it shall be heard on **May 14, 2026, at 8:30 a.m. in Department 3.**

Petitioner’s Petition for Writ of Mandate

Petitioner’s petition for writ of mandate is continued to **June 18, 2026, at 8:30 a.m. in Department 3.** Petitioner shall serve the writ on respondent in the same manner as a summons in a civil action and file proof of service on respondent on or before **May 26, 2026.** (Code Civ. Proc., §§ 1088.5, 1094.5, 1096.)